

Court No. - 21

Case :- WRIT - C No. - 27483 of 2016

Petitioner :- Sachchidanand

Respondent :- State Of Through Secretary Electricity Shakti B.
And 3 Ors.

Counsel for Petitioner :- Subhash Chandra Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,Acting Chief Justice

Hon'ble Yashwant Varma,J.

Sachchidanand is before this Court with the prayer to issue writ in the nature of mandamus commanding the respondent no. 4 to provide electric connection to petitioner for operating tube-well pump.

We have proceeded to examine the pleadings of the writ petition alongwith annexures, that have been so appended therein, and what we find from the same that till date petitioner has not at all moved an application for grant of fresh electric connection as a full fledged mechanism has been provided for under Clause 4.4 of U.P. Electricity Supply Code, 2005 wherein an incumbent, who intends to have a new connection is obligated to move a prescribed form (Annexure 4.1) complete in all respects and accompanied by the prescribed registration-cum-processing fee alongwith all requisite documents and once application in question has been moved following the aforementioned procedure, then the time frame has been provided for under Clause 4.7 of U.P. Electricity Supply Code, 2005.

From the pleadings and records, this much is clear that till date petitioner has not at all proceeded to comply with the provisions, that has been provided for under Clause 4.4 of U.P. Electricity Supply Code, 2005 and contrarily he has proceeded to move an plain and simple application wherein he has requested for grant of new electric connection, in view of this, in the format the present writ petition has been framed and drawn, we cannot grant and relief or reprieve to the petitioner and writ petition is **dismissed**, accordingly, but we make it clear that dismissal of this writ petition will not at all come in the way of petitioner to move an application for grant of new electric connection, as is provided for under Clause 4.4 of U.P. Electricity Supply Code, 2005.

Order Date :- 1.6.2016

Shekhar